

EXHIBIT D
OFFICE OF THE COUNTY ATTORNEY
ASSIGNMENT MEMORANDUM

TO	Junior Prosecutor
FROM	Maya Chen, Assistant County Attorney
DATE	June 23, 2026
RE	State v. Robert Glass — Burglary Review

Please review the attached investigative materials concerning Robert Glass and determine whether the facts support charging him with burglary under Texas law.

Please base your analysis on the facts contained in the investigative file. If additional facts would materially affect your recommendation, identify them.

§

To get you started, I pulled the Texas Burglary statute. Thanks for your help on this! -Maya

STATE OF TEXAS
OFFICE OF THE COUNTY ATTORNEY
BLANCO COUNTY

PROSECUTOR REVIEW FILE
STATE v. ROBERT GLASS

Potential Charge	Burglary
Date of Offense	June 21, 2026
Location	Pedernales Falls State Park Campground, Site 27, Pedernales Falls State Park, Blanco County, Texas
File No.	26-0621-1457

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- Exhibit B** Supplemental Report — Suspect Contact / Interview
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CONFIDENTIAL — ATTORNEY WORK PRODUCT

Prepared for instructional use.

The parties, reports, agency personnel, and file number are fictional; the park and county are real.

EXHIBIT A
BLANCO COUNTY SHERIFF'S OFFICE
INCIDENT / OFFENSE REPORT

Case No.	26-0621-1457
Report Date/Time	06/21/2026 — 8:02 a.m.
Reported Offense	Unauthorized Vehicle Entry / Investigation
Location	Pedernales Falls State Park Campground, Site 27
Complainant	Nora Bennett

NARRATIVE / OFFICER'S REPORT

On June 21, 2026, at approximately 6:12 a.m., I, Deputy Michael T. Harper #214, responded to Pedernales Falls State Park Campground regarding a reported attempted theft from a vehicle. I contacted the complainant, Nora Bennett, at Site 27. Bennett appeared tired but calm and stated that she had not been injured.

Bennett stated that she is a traveling nurse and had finished an assignment in Tyler earlier in June. Her next position in Houston begins in July. In the meantime, she has been driving to parks and campgrounds around Texas. She said she had been on the road for about three weeks and expected to continue traveling for another week or two. She keeps an apartment in San Antonio, although she said most of her belongings are currently in storage there.

Bennett said she had modified her 2021 GMC Yukon before the trip by removing the third-row seats and placing a wooden sleeping platform in the rear cargo area. She described the platform as something she and her brother built over a weekend and said it can be removed with basic tools. A foam mattress fits on top. Bennett said she usually sleeps in the Yukon when she is at a campground because it is cheaper and she likes being outdoors. She estimated she had slept in the vehicle about 15 or 16 nights during this trip. On other nights she stayed with friends in Dallas and Austin and spent two nights at hotels because of severe weather.

Bennett stated that she keeps clothing, toiletries, a cooler, cooking supplies, and other personal items in the Yukon while traveling. She cooks on a portable propane camp stove outside the vehicle when campground rules allow. She sometimes eats in the front seat or on the rear platform, but also uses picnic tables. She uses campground restrooms and showers. The Yukon has no installed plumbing, electrical hookups, toilet, sink, refrigerator, or built-in cooking equipment. Bennett said she continues to use the Yukon for ordinary transportation every day.

Bennett arrived at Site 27 at approximately 7:45 p.m. on June 20. She checked in at the campground office, bought a bundle of firewood, and later made pasta on her camp stove. She said she spoke briefly with campers at Site 25 about the forecast. Before going to sleep, she placed a black backpack containing her laptop, wireless headphones, charging cords, and other electronics on the front passenger seat. She left the driver's-side door unlocked and cracked both front windows approximately three to four inches because the night was warm. She said the remaining doors were closed.

At approximately 5:15 a.m., Bennett awoke after hearing movement near the front of the Yukon. She was lying on the mattress in the rear cargo area. Looking toward the front, she saw a man partly inside the driver's side of the vehicle. She saw him holding one shoulder strap of her backpack. Bennett shouted, 'Hey! Get out of my car!' The man released the backpack and ran. Bennett did not see him take any property and did not observe a weapon.

Bennett described the man as a white male, approximately 30–40 years old, average build, wearing jeans and a dark hooded sweatshirt. She could not clearly see his face.

EXHIBIT A — CONTINUED

OFFICER'S OBSERVATIONS AT SCENE

- Vehicle was a white 2021 GMC Yukon with Texas registration. It was parked normally within Site 27 and appeared operable.
- Driver's door was closed but unlocked when I inspected it. Both front windows were partially open approximately three to four inches.
- A black backpack was on the front passenger seat. The main compartment was partly unzipped. Bennett stated that was how she had left it before going to sleep.
- The third-row seats had been removed. A raised plywood platform occupied most of the rear cargo area behind the second row. A foam mattress cut to fit the space was on the platform, along with a sleeping bag and two pillows. The second-row seats remained installed and upright.
- Removable fabric sunshades were attached to portions of the rear side windows. Bennett stated that she sometimes uses the shades for privacy when sleeping in the vehicle and sometimes to keep the interior cooler during the day.
- Under and beside the platform were plastic storage bins, folded clothing, toiletries, hiking shoes, paper towels, a lantern, bottled water, a cooler, a portable propane stove, cookware, and a small battery pack. I also observed a paperback novel, two park maps, a hospital ID badge, and a bag of coffee beans.
- I observed no permanent plumbing, cabinetry, shore-power connection, built-in cooking appliance, toilet, or other fixed equipment. Bennett stated that the platform is removable and that she intends to reinstall the third-row seats after her trip.
- A state-parks annual pass was affixed to the windshield. A Houston Astros cap and an unopened birthday card were on the dashboard.

WITNESS / CALLER INFORMATION

James Walker — Site 25. Walker stated that at about 5:15 a.m. he heard a woman yell, "Get out of my car!" He stepped outside his travel trailer and saw a man running from Site 27 toward the campground road. Walker described the man as wearing a dark sweatshirt and jeans. Walker called 911. He did not see the man enter the Yukon.

Linda Carver — Site 29. Carver stated that she heard shouting and then saw a man running away from the direction of Site 27. She could not identify him and did not see what occurred at the vehicle. Carver said she had noticed Bennett cooking at the picnic table the prior evening but had not spoken with her.

EVIDENCE / FOLLOW-UP

- Digital photographs of exterior and interior of Yukon (see Exhibit C).
- No latent-print processing requested at scene.
- No property reported missing or damaged.
- Area canvass conducted; no campground surveillance camera located covering Site 27.

Reporting Officer: Deputy Michael T. Harper #214

EXHIBIT B
BLANCO COUNTY SHERIFF'S OFFICE
SUPPLEMENTAL REPORT — SUSPECT CONTACT / INTERVIEW

Case No.	26-0621-1457
Date/Time	06/21/2026 — 10:47 a.m.
Reporting Officer	Deputy Daniel Ruiz #187
Suspect	Robert Glass

At approximately 9:20 a.m., I located Robert Glass near a convenience store approximately four miles from Pedernales Falls State Park Campground. His clothing generally matched the description provided by the 911 caller. Glass was detained and later transported to the Sheriff's Office.

At the Sheriff's Office, Glass was advised of his rights. He stated that he understood them and agreed to speak with me. The interview was audio/video recorded. The following is a summary and is not a verbatim transcript.

Glass said he had been staying with an acquaintance near Johnson City and had walked into the campground early that morning. He stated that his cell phone had stopped working and that he was supposed to call his brother, who was going to pick him up later that morning. Glass said he noticed the Yukon because its windows were partially open and a backpack was visible on the front passenger seat. He stated that he looked through the window and did not see anyone in the front or second row. He said he assumed the vehicle was empty.

Glass stated that he tried the driver's door, found it unlocked, opened it, and stepped or leaned into the driver's area. When asked which, he said, 'I had one foot in, maybe both for a second. I don't know.' He admitted reaching across and taking hold of one strap of the backpack. Glass said he thought there might be a cell phone inside that he could use to call his brother. He stated that he intended to pull the backpack closer and look for a phone, but denied intending to take the backpack or anything in it.

Glass stated that almost immediately after he grabbed the strap, he heard a woman yell from behind him or from the rear of the Yukon. He said he was startled because he had not realized anyone was inside. He released the backpack and ran. He denied taking any property or intending to hurt Bennett.

When shown a photograph of the rear interior, Glass said he had not noticed the mattress or sleeping platform before opening the door. He stated, 'From outside it just looked like an SUV with stuff in the back.' He also said he had seen vehicles at campsites before and knew that 'some people sleep in their cars,' but claimed he did not know whether anyone was sleeping in this one.

When asked why he did not ask someone at the campground to borrow a phone, Glass stated that it was very early and he 'didn't want to go around waking people up.' When asked why he believed he could look through someone else's backpack without permission, Glass responded, 'I wasn't going to steal anything. I just needed to make one call.' Glass said he had consumed two beers the prior evening but denied being intoxicated that morning. He asked twice whether Bennett wanted to press charges and stated that he was 'sorry I scared her.'

At booking, officers recovered a cell phone from Glass. Deputy Ruiz pressed the power button, but the phone did not power on. No charging cable was found among Glass's property. The phone was not otherwise examined.

Disposition: Glass arrested and booked pending prosecutor review of appropriate charge.

Reporting Officer: Deputy Daniel Ruiz #187

EXHIBIT C

SCENE / VEHICLE DOCUMENTATION

Photographs below are instructional simulations generated for this exercise.

They are intended to depict the scene described in the reports, not to resolve the legal issue.



PHOTO 1 — EXTERIOR

White GMC Yukon parked at Site 27. Front window is partially open. Picnic table and ordinary campsite items visible nearby.



PHOTO 2 — FRONT PASSENGER AREA

Backpack positioned on front passenger seat. Front cabin remains configured for ordinary driving.



Rear cargo area. Platform with bedding. Camping stove, cooler,

PHOTO 3 — REAR CARGO AREA

Removable platform and bedding in rear cargo area with cooler and storage bins. Image shows a travel/camping setup but no fixed plumbing or built-in residential equipment.

Tex. Penal Code § 30.02

*** This document is current through the 2025 Regular Session and the 2nd C.S. of the 89th Legislature; and the November 4, 2025 general election results. ***

Texas Statutes & Codes Annotated by LexisNexis® > Penal Code > Title 7 Offenses Against Property (Chs. 28 — 35A) > Chapter 30 Burglary and Criminal Trespass (§§ 30.01 — 30.07)

Sec. 30.02. Burglary.

(a) A person commits an offense if, without the effective consent of the owner, the person:

- (1)** enters a habitation, or a building (or any portion of a building) not then open to the public, with intent to commit a felony, theft, or an assault; or
- (2)** remains concealed, with intent to commit a felony, theft, or an assault, in a building or habitation; or
- (3)** enters a building or habitation and commits or attempts to commit a felony, theft, or an assault.

(b) For purposes of this section, “enter” means to intrude:

- (1)** any part of the body; or
- (2)** any physical object connected with the body.

(c) Except as provided in Subsection (c-1), (c-2), or (d), an offense under this section is a:

- (1)** state jail felony if committed in a building other than a habitation; or
- (2)** felony of the second degree if committed in a habitation.

(c-1) An offense under this section is a felony of the third degree if:

- (1)** the premises are a commercial building in which a controlled substance is generally stored, including a pharmacy, clinic, hospital, nursing facility, or warehouse; and
- (2)** the person entered or remained concealed in that building with intent to commit a theft of a controlled substance.

(c-2) An offense under this section is a felony of the third degree if:

- (1)** the premises are a building other than a habitation; and
- (2)** it is shown on the trial of the offense that the actor committed the offense in the course of committing an offense under Section 20.05(a)(2).

- (d) An offense under this section is a felony of the first degree if:
- (1) the premises are a habitation; and
 - (2) any party to the offense entered the habitation with intent to commit a felony other than felony theft or committed or attempted to commit a felony other than felony theft.

History

Enacted by Acts 1973, 63rd Leg., ch. 399 (S.B. 34), § 1, effective January 1, 1974; am. Acts 1993, 73rd Leg., ch. 900 (S.B. 1067), § 1.01, effective September 1, 1994; am. Acts 1995, 74th Leg., ch. 318 (S.B. 15), § 8, effective September 1, 1995; am. Acts 1999, 76th Leg., ch. 727 (H.B. 998), § 1, effective September 1, 1999; Acts 2017, 85th Leg., ch. 338 (H.B. 1178), § 2, effective September 1, 2017; Acts 2023, 88th Leg., 3rd C.S., ch. 1 (S.B. 4), § 8, effective February 6, 2024.

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